

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUOR069756: JEFFREY DEVICO vs PNC BANK, N.A, et al.

09/09/2026 in Department 43

Motion for Preliminary Injunction

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion for Preliminary Injunction

Tentative Ruling: Plaintiff's Motion for Preliminary Injunction is DENIED.

Defendant is ordered to serve notice of the Court's ruling.

DISCUSSION

I. REQUEST FOR JUDICIAL NOTICE

Defendants' Request for Judicial Notice of Exhibits A, B and C are granted. The Court takes judicial notice of the Deed of Trust, Assignment of Deed of Trust and Corporate Assignment of Deed of Trust.

Plaintiff's Request for Judicial Notice is granted. The Court takes judicial notice of the Senate Judiciary Committee Analysis of SB 681.

II. STATEMENT OF FACTS

Plaintiff Devico and his co-borrower obtained a loan of approximately \$199,900 from National City Bank in 2007, secured by a subordinate deed of trust against the subject residential property. Plaintiff does not dispute that he ceased making payments in approximately February 2010. The loan subsequently matured on January 19, 2022.

Plaintiff contends that, beginning in or about 2010, he received no periodic account statements, payment instructions, servicing-transfer notices, or ownership-transfer notices concerning the loan. Plaintiff further contends that he believed the loan had been charged off and that he did not receive collection communications concerning the loan for many years.

In 2026, Plaintiff finally received collection correspondence concerning the loan. One communication asserted a balance that included approximately \$253,251 in interest and \$21,122 in fees. On May 28, 2026, a Notice of Default was recorded stating that approximately \$471,371 was required to cure the default.

No Notice of Trustee's Sale has been recorded, and no foreclosure sale has been scheduled.

Plaintiff seeks to enjoin foreclosure principally on the grounds that Defendants violated federal mortgage-servicing requirements concerning periodic statements, California Civil Code §§ 2924.13 and 2924.17, the Rosenthal Fair Debt Collection Practices Act, and the Unfair Competition Law. Plaintiff contends that the alleged servicing failures rendered some or all of the interest and fees included in the Notice of Default unauthorized and that the Notice of Default therefore cannot support foreclosure.

Defendants oppose the motion. They contend that Plaintiff has not pleaded an independent claim under the federal Truth in Lending Act; that the federal periodic-statement regulations do not establish that the interest is uncollectible; that the loan matured in January 2022; that Plaintiff has not established that the loan was formally charged off; that Civil Code § 2924.13 cannot be applied retroactively to conduct occurring before its June 30, 2025 effective date; and that the Notice of Default was supported by the required certification and competent and reliable evidence.

III. GOVERNING LAW

A preliminary injunction is an interim remedy whose purpose is to preserve the status quo pending adjudication on the merits. The court considers the likelihood of the plaintiff's success on the merits and the relative interim harm to the parties from granting or denying relief. The factors require the Court to engage in a weighing process wherein a greater showing on one factor may be balanced against a lesser showing on another. (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678; *White v. Davis* (2003) 30 Cal.4th 528, 554.)

The Court must identify a sufficient likelihood or possibility of success on the merits. Prevailing on the balance of hardships alone will not support issuance of an injunction where the plaintiff's substantive claim is legally deficient. (*Butt*, supra, 4 Cal.4th at pp. 677-678; *Sahlolbei v. Providence Healthcare, Inc.* (2003) 112 Cal.App.4th 1137, 1145.)

Civil Code § 2924.13, enacted by Assembly Bill 130 and effective June 30, 2025, specifically addresses subordinate residential mortgages. It defines "mortgage servicer" to include both the current mortgage servicer and prior mortgage servicers. It identifies as unlawful practices the failure to provide certain written communications, servicing-transfer notices, ownership-transfer notices, and periodic account statements when otherwise required by law. It also prohibits a

mortgage servicer, mortgagee, trustee, beneficiary, or authorized agent from proceeding with a nonjudicial foreclosure unless the statutory certification and notice requirements are satisfied. Cal. Civ. Code, § 2924.13, subds. (a)-(c).

Section 2924.17 requires a declaration or notice of default to be accurate and complete and supported by competent and reliable evidence, including evidence substantiating the borrower's default and the foreclosing party's right to foreclose.

IV. ANALYSIS

A. Plaintiff Has Not Demonstrated a Likelihood of Success on the Periodic-Statement Theory

Plaintiff's principal merits theory is that Defendants were required to provide periodic account statements and that their failure to do so prevents Defendants from collecting interest accruing during the period in which statements were not provided.

Plaintiff has not established that a violation of the periodic-statement requirement automatically extinguishes the contractual obligation to pay interest. The record also indicates that the loan matured on January 19, 2022. Plaintiff therefore has not established that periodic statements were required throughout the entire period for which Defendants calculated interest.

Plaintiff's reliance upon an alleged 2008-2009 charge-off presents a separate evidentiary problem. Plaintiff has not established through competent documentary evidence that the loan was formally charged off, when the charge-off occurred, or that the regulatory provisions upon which he relies were applicable to that charge-off.

Defendants' reliance upon *Cavalry SPV I, LLC v. Watkins* (2019) 36 Cal.App.5th 1070, 1088, successfully undermines Plaintiff's argument that failure to receive account statements alone constitutes a waiver of a creditor's contractual right to collect interest. This case does not necessarily resolve every federal regulatory issue raised by Plaintiff, but it weighs against Plaintiff's broader waiver/forfeiture theory.

Plaintiff therefore has not made the required showing that the lack of periodic statements renders the entire amount demanded in the Notice of Default unlawful.

B. Civil Code § 2924.13 Does Not Presently Establish a Basis for Preliminary Relief

Section 2924.13 is significant because the subject loan is a subordinate mortgage and the statute expressly addresses subordinate residential mortgages. The statute became effective June 30, 2025. It expressly includes both current and prior mortgage servicers within the statutory definition.

Plaintiff contends that the long period during which he allegedly received no written communication or periodic statements constitutes an unlawful practice under subdivision (b). However, the principal distinction affecting applicability relates to timing.

The alleged absence of communications and statements began approximately in 2010 and continued, according to Plaintiff, until 2026. Most of the alleged conduct therefore occurred before Civil Code § 2924.13 existed.

California follows the general rule that statutes are presumed to operate prospectively unless the Legislature clearly indicates otherwise. (*Meyers v. Philip Morris Companies, Inc.* (2002) 28 Cal.4th 828, 839, 844.)

The statutory text of § 2924.13 expressly provides that “mortgage servicer” includes prior mortgage servicers. That language may permit a borrower to rely upon historical servicing information when challenging a current foreclosure certification. It does not indicate, or even suggest, that the Legislature intended to impose substantive liability for conduct that was completed years before the statute became effective.

The Court therefore need not finally resolve the scope or constitutionality of § 2924.13 on this motion. The Court concludes that Plaintiff has not established a sufficient likelihood of success under the statute to warrant preliminary relief.

C. Plaintiff Has Not Established a Material Violation of Civil Code § 2924.17

Plaintiff contends that the Notice of Default is defective because it includes interest and fees that allegedly were not lawfully chargeable.

There is no dispute that Plaintiff stopped making payments beginning in around 2010 and that the loan matured in 2022. The central dispute concerns the amount properly owing, rather than the existence of the underlying default.

Defendants represent that the Notice of Default was supported by a certification that the required evidence was reviewed before foreclosure proceedings commenced.

Plaintiff has not established that the amount stated in the Notice of Default is materially inaccurate under § 2924.17. His argument depends upon first establishing the underlying federal and state statutory violations found to be inapplicable above. Because the necessary showing has not been made, the derivative § 2924.17 claim does not support the granting of injunctive relief.

D. The Rosenthal Act and UCL Claims Do Not Supply an Independent Basis for an Injunction

Plaintiff's Rosenthal Act theory is also substantially dependent upon the proposition that the interest and fees demanded were unauthorized.

Plaintiff's UCL claim is principally premised upon alleged violations of other statutory requirements. The UCL's unlawful-prong analysis permits a plaintiff to rely upon violations of other laws. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.) As above, the statutory violations must still be established, but Plaintiff has not shown a sufficient likelihood of establishing the alleged federal or state violations upon which these claims depend.

Accordingly, neither the Rosenthal Act claim nor the UCL claim provide a basis for preliminary injunctive relief on the record before the Court.

E. Plaintiff's Showing of Serious Potential Harm Does Not Overcome the Merits Deficiency

The Court recognizes that foreclosure of a residence presents substantial potential harm. Plaintiff could lose possession of the property and potentially significant property rights before his claims are finally adjudicated.

The Court does find that the interim-harm factor weighs in Plaintiff's favor to a meaningful degree.

That factor does not relieve Plaintiff of the obligation to make a sufficient merits showing. The California Supreme Court's formulation in *Butt* requires the Court to consider the likelihood of success together with the relative harms. (*Butt*, supra at pp. 677-678.)

The Court concludes that Plaintiff has not demonstrated a sufficiently strong probability of prevailing on the principal theories supporting the requested injunction. The relative hardship therefore does not justify prohibiting Defendants from exercising their contractual and statutory foreclosure rights at this stage.

The Court also notes that no trustee's sale has yet been scheduled. The present denial therefore does not determine the parties' rights concerning the validity of the debt, the amount of arrears, or the overall applicability of § 2924.13.